

NEWSLETTER N. 510 of September 26, 2023

Approval from the Privacy Authority for the new Culture Card and the Merit Card

Journalism: no to witness data on the online will

Smart cities and data protection: the working document of the Berlin Group

Approval from the Privacy Authority for the new Culture Card and the Merit Card

The verification questionnaires must, however, deal with anonymous and aggregated data

Favorable opinion from the Privacy Authority on the criteria for attribution and use of the "Youth Culture Card" and the "Merit Card."

The draft regulation, submitted to the Authority by the

Ministry of Culture, modifies certain aspects of the

already established Student Card, providing that from 2023 the Card will be replaced by two cultural promotion tools for young people, which can be combined: the "Youth Culture Card" and the "Merit Card."

To access the Culture Card, it will be necessary to be eighteen years old starting from the year 2023 and

have an ISEE not exceeding 35,000 euros. To obtain the "Merit Card," one must have achieved a high school diploma with a score of 100 out of 100.

The draft regulation introduces some variations in the rules, including, in cases where the beneficiaries do not have full legal capacity, the possibility that authentication through SPID or

CIE can be carried out by the legal representative, using the same methods provided for the beneficiary.

The draft then lists the products that cannot be purchased with

the bonus, such as subscriptions to channels or

platforms that offer audiovisual content. However, dance courses are included.

Regarding the registration of merchants via SPID or CIE on the dedicated

computer platform, the draft provides that the

owners or legal representatives of the merchants

must also indicate the certified email address at the time of registration.

The Ministry of Culture, in continuity with the procedure already followed during previous

editions of the initiative, has submitted for the Authority's opinion the draft decree of the

Secretary General containing the rules regarding the methods and times for managing and storing personal data.

The Authority has deemed that the changes introduced by the new draft do not present particular issues from the perspective of personal data protection, and the security measures provided by the decree of the Secretary General of the Ministry and the related

attachments are adequate to the level of risk

associated with the considered treatments.

In issuing its favorable opinion, the Authority requested, however, that the

draft specifies that the treatment carried out through the questionnaires

administered by the Ministry of Culture to

beneficiaries and merchants, for the verification

of the regulatory impact ("VIR"), must

concern exclusively anonymous and aggregated data.

Journalism: no to witness data on the online will

The Authority fines the newspaper 10,000 euros

A healthcare worker finds their personal data published in an

online newspaper in a photo depicting the holographic will of a famous actress, who recently

passed away, to whom they had served as a witness. Unable to obtain its removal, they turn to the Authority, which fines the publication.

The photo accompanied an article that reported the actress's last wishes and the disputes over the inheritance. Following the online publication, the healthcare worker was recognized and, in the following days, contacted by acquaintances and journalists seeking information about the matter.

The will published online clearly displayed the personal data (name, surname, date of birth, residence address, witness status) of the individual and also made recognizable the personal data of a second witness present at the drafting of the document. Following the complaint from the healthcare worker, the publication responded that the identities of the witnesses were an integral part of the will and that, in any case, the public interest in the news deprived the document of any confidentiality aspect.

In its decision, the Authority reminded that the publication of data of individuals connected to the protagonists of a matter of public interest must always occur within the limits of the essentiality of the information, which journalists are obliged to respect. The Authority emphasized that the will, while being a public document, cannot be shared with anyone, as access to the register of wills at the Ministry of Justice is regulated by sector legislation.

Moreover, its publication in the online newspaper resulted in the dissemination of personal data of individuals—such as in the case of the healthcare worker—to an indeterminate multitude of people, in violation of the principles of

****Essentiality, including correctness, relevance, and non-excessiveness of information concerning the matter.****

In light of these reasons and considering that the publication obscured the data of the two witnesses only after the initiation of the proceedings, the Authority imposed a fine of 10,000 euros on the publisher.

****Smart Cities and Data Protection: The Working Document of the Berlin Group****

The International Working Group on Data Protection in Technology (IWGDPT), known as the "Berlin Group," which brings together representatives from European and non-European authorities, international organizations, and experts from around the world, has adopted a working document on "Smart Cities," to which the Privacy Authority also contributed.

From traffic control to mobility, from resource management to social services, cities are adopting new and innovative processes to make life and stay more comfortable. However, the path towards "smart" or "connected" cities, with the introduction of new technologies or the adoption of new treatments of pre-existing data, requires significant governance to avoid risks to the rights and freedoms of individuals.

The working document, through risk analyses, case studies, and recommendations, aims to provide a practical support tool for local administrations, service providers, and regulatory authorities to define solutions that respect the protection of personal data.

One of the proposed cases concerns the analysis of passenger movements connected to the Wi-Fi of the London transport company. The project, carried out through the immediate pseudonymization of users' personal data and according to the principle of minimization, aimed to monitor crowding at subway stations and improve commuter movements. In this way, the company was able to immediately identify the aggregated data to be used for the purpose, without needing to cross-reference it with other data in its possession, such as that present in subscriptions.

Another challenging aspect in terms of data protection is the transparency regarding the processing of individuals' data and the exercise of rights by the data subjects. In this regard, the experiences of the Amsterdam Algorithm Register, a site that illustrates all the algorithms used by the administration in

the provision of municipal services, and the city of Helsinki, which announced the creation of a dashboard where citizens can manage the consents granted, are particularly interesting. Finally, the Berlin Group's recommendations emphasize that data should be processed according to the principle of purpose limitation, in the case of "smart home" devices monitoring public housing, and integrity and confidentiality, concerning the security standards of IoT (Internet of Things) tools.

****THE ACTIVITIES OF THE AUTHORITY - FOR THOSE WHO WANT TO KNOW MORE****

The most important interventions and measures recently adopted by the Authority
"Privacy Ambassadors": here are the winning schools of the contest launched by the Authority. The students' videos explain to their peers what privacy is and how to defend it.
Press Release of September 23, 2023

The "Privacy Tour" kicks off, the initiative of the Authority for those living in small towns.
Those who participate commit to promoting activities to avert the risk of new digital divides.
Press Release of September 19, 2023

The Authority calls on the public and private sectors to build the data protection of the future - Rome, September 18, 2023. 19 thematic tables: from health to artificial intelligence, from telemarketing to smart cities, from cybersecurity to human rights, from financial services to minors.
Press Release of September 13, 2023

****NEWSLETTER of the Authority for the Protection of Personal Data****

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